

[1 EDW. 8. & Ministry of Health [Ch. xxi.]
1 GEO. 6.] Provisional Order Confirmation
(Earsdon Joint Hospital District) Act, 1937.



CHAPTER xxi.

An Act to confirm a Provisional Order of the Minister of Health relating to the Earsdon Joint Hospital District. A.D. 1937.
[6th May 1937.]

WHEREAS under the provisions of the Public Health Act 1875 and the Local Government Act 1933 the Minister of Health has made a provisional order which needs confirmation by Parliament : 38 & 39 Vict. c. 55.
23 & 24 Geo. 5. c. 51.

Be it therefore enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows :—

1. The order of the Minister of Health which as amended is set out in the schedule to this Act is hereby confirmed and shall have full validity and force. Order in schedule confirmed.

2. This Act may be cited as the Ministry of Health Provisional Order Confirmation (Earsdon Joint Hospital District) Act 1937. Short title.

A.D. 1937.

SCHEDULE.

EARSDON JOINT HOSPITAL DISTRICT.

Provisional order altering the Earsdon Joint Hospital Order 1904.

WHEREAS by virtue of the Earsdon Joint Hospital Order 1904 (in this order called "the order of 1904") as altered by the Wallsend (Extension) Order 1910 and the Earsdon Joint Hospital Order 1925 (in this order called "the order of 1925") which were confirmed by Parliament and the Earsdon Joint Hospital Order 1912 (in this order called "the order of 1912") the urban districts of Cramlington Earsdon Longbenton Seaton Delaval Seghill and Whitley and Monkseaton were constituted a united district called the Earsdon Joint Hospital District (in this order referred to as "the united district") and the governing body of the united district is the Earsdon Joint Hospital Board (in this order called "the joint board");

And whereas by the Northumberland Review Order 1935 the area of the urban district of Whitley and Monkseaton has been altered and the urban districts of Cramlington Earsdon Longbenton Seaton Delaval and Seghill have been abolished and two new urban districts known as the urban districts of Longbenton and Seaton Valley respectively have been formed;

56 & 57 Vict.
c. 73. And whereas by the order of 1904 as altered as aforesaid certain of the provisions of the Public Health Acts 1875 to 1885 and the Local Government Act 1894 were applied to the joint board;

And whereas it is expedient that the boroughs of Blyth and Wallsend and the new urban districts of Longbenton and Seaton Valley should be included in the united district and that certain provisions of the Local Government Act 1933 (in this order called "the Act of 1933") should be applied to the joint board in substitution for certain of the provisions of the Public Health Acts 1875 to 1885 and the Local Government Act 1894 applied thereto by the order of 1904 as altered as aforesaid and that the order of 1904 as altered as aforesaid should be further altered as in this order provided :

Now therefore the Minister of Health in pursuance of the powers given to him by section 297 of the Public Health Act

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1875 subsection (2) of section 293 of the Act of 1933 and of A.D. 1937.
all other powers enabling him in that behalf hereby orders as —
follows :—

1.—(1) Subject to the provisions of this section this order shall come into operation on the first day of October nineteen hundred and thirty-seven. Date of operation.

(2) Sections 7 8 and 9 and the second and third schedules to this order shall come into operation on the date of the Act of Parliament confirming this order.

2. The united district shall be altered and extended and shall comprise the constituent districts named in column 1 of the first schedule hereto and references in the order of 1904 the order of 1912 and the order of 1925 to the constituent districts and constituent authorities shall be construed as references to those districts and to the authorities named in column 2 of the said schedule. Extension of united district.

3. The joint board shall consist of five ex-officio members and ten elective members and the ex-officio members shall be the persons described in column 3 of the first schedule hereto and the number of elective members to be elected by each of the constituent authorities shall be that set opposite the name of the constituent authority in column 4 of the said schedule. Constitution of joint board.

4. The order of 1904 as altered as aforesaid shall have effect as if the first schedule to this order were substituted for the schedule to that order and called the first schedule. Substitution of new schedule.

5. The provisions of article XI of the order of 1904 shall apply to the first election by the borough councils of Blyth and Wallsend and the urban district councils of Longbenton and Seaton Valley of the elective members to represent those councils on the joint board as if the election related to the filling of vacancies occurring at the commencement of this order. Election of elective members by new constituent authorities.

6. For paragraph (2) of article XIX of the order of 1904 the following paragraph shall be substituted :— Expenses of joint board.

“(2) To the common fund so far as the same is not provided under paragraph (1) of this article each of the constituent authorities shall make a contribution to meet the expenditure of the joint board in any year in the proportion which the rateable value of the constituent district appearing in the valuation list in force on the first day of April last preceding the date of the issue of the precept bears to the aggregate of the rateable values of all the constituent districts appearing in the valuation lists in force on that day.”

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of property
liabilities
&c.

7. The provisions of section 151 (which relate to financial adjustments) of the Act of 1933 shall have effect in relation to this order as if the alteration of the united district effected by this order were an alteration of areas or authorities made by an order under Part VI of that Act.

Inquiries
and ex-
penses.

8. The Minister of Health may hold any inquiry which he may deem necessary for the purposes of this order and section 290 of the Act of 1933 shall apply as if the joint board were a local authority.

Substitution
of provisions
of Act of
1933.

9. The provisions of the Act of 1933 relating to the audit of accounts by district auditors together with such other provisions of the Act of 1933 as are hereinafter in this order referred to shall in the manner and to the extent and subject to the modifications hereinafter in this order provided apply to the joint board in substitution for the provisions of the Public Health Acts 1875 to 1885 and the Local Government Act 1894 (other than those provisions of the Public Health Act 1875 which are set out in the second schedule to this order) which are applied to the joint board by the order of 1904 as altered as aforesaid and accordingly the order of 1904 as altered as aforesaid shall have effect—

- (i) as though the second schedule to this order were appended thereto and called the second schedule;
- (ii) as though for such of the articles thereof as are specified in the first column of the third schedule to this order there were substituted the provisions respectively mentioned in the second column of that schedule;
- (iii) as though in paragraph (5) (committees) of article XII thereof for the words “any such committee shall be subject to the provisions of Part IV of the first schedule to the Local Government Act 1894 so far as they are applicable” there were substituted the words “the provisions of section 96 of the Local Government Act 1933 shall apply to the joint board as if the joint board were a local authority”; and
- (iv) as though in article XXI (Inspection of accounts) thereof there were added at the end thereof the words “and shall be subject to audit by a district auditor.”

Expenses
not other-
wise pro-
vided for &c.

10.—(1) The costs charges and expenses as taxed by the taxing officer of the House of Lords or the House of Commons of each of the constituent authorities in relation to the confirmation of this order (whether in promoting supporting or opposing the same) shall be payable by the joint board and if any of the constituent authorities shall in the first instance pay any of such costs charges and expenses as aforesaid the amount so paid shall be repaid to them by the joint board.

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(2) For the purpose of defraying such costs charges and expenses as aforesaid the joint board may borrow as if they were a local authority within the meaning of the Local Government Act 1933 provided that all such moneys shall be repaid within five years from the date of borrowing the same. A.D. 1937.

11. This order may be cited as the Earsdon Joint Hospital Order 1936 and the order of 1904 the order of 1912 the order of 1925 and this order may be cited together as the Earsdon Joint Hospital Orders 1904 to 1936. Short and collective titles.

FIRST SCHEDULE.

Name of district.	Name of authority.	Ex-officio members.		Elec- tive mem- bers.
		No.	Description.	No.
The borough of Blyth.	The council of the borough of Blyth.	1	The mayor or in the event of his being unable or unwilling to act the deputy mayor.	2
The borough of Wallsend.	The council of the borough of Wall- send.	1	Do.	2
The urban dis- trict of Long- benton.	The urban district council of Long- benton.	1	The chairman of the urban district council or in the event of his being unwilling to act or being an ex-officio member elsewhere des- cribed in this schedule then the vice-chairman of the urban district council.	2
The urban dis- trict of Sea- ton Valley.	The urban district council of Seaton Valley.	1	Do.	2
The urban dis- trict of Whit- ley and Monk- seaton.	The urban district council of Whit- ley and Monk- seaton.	1	Do.	2
	Total	5	Total	10

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SECOND SCHEDULE.

ENACTMENTS APPLIED TO THE JOINT BOARD.

Session and chapter.	Short title.	Enactments applied.	Subject-matter.
38 & 39 Vict. c. 55.	The Public Health Act 1875.	Section 122 - - - Section 123 (as amended by section 63 of the Public Health Act 1925). Section 131 - - - Section 132 (as amended by section 60 of the Public Health Acts Amendment Act 1907). Sections 179 to 181 - Section 206 (except so much as requires the publication in a local newspaper of the annual report). Sections 251 253 254 258 261 262 and 265. Sections 266 and 267 - Section 269 (as amended by the Summary Jurisdiction Act 1884). Section 298 - - - Section 306 (except so far as it relates to the destruction of notices &c.). Section 307 - - - Section 308 - - - Section 309 - - -	Disinfection of articles. Ambulances. Provision of hospitals or temporary places for reception of the sick. Recovery of cost of maintenance in hospitals. Arbitration. Annual report. Recovery of penalties and legal proceedings. Notices. Appeals to quarter sessions. Costs of provisional orders. Penalty for obstructing the execution of Act. Penalty for damaging works &c. Compensation for damage by local authority. Compensation to officers.
23 & 24 Geo. 5. c. 51.	The Local Government Act 1933.	Subsection (4) of section 107 and sections 119 120 121 122 123 and 125. Sections 157 to 160 and 164 to 166.	Officers and offices. Purchase and disposal of lands.

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SECOND SCHEDULE—continued.

A.D. 1937.

Session and chapter.	Short title.	Enactments applied.	Subject-matter.
23 & 24 Geo. 5. c. 51—cont.	The Local Government Act 1933—cont.	Section 176 - - - Section 266 - - - Sections 277 and 278 - Section 289 - - - Paragraph 5 of Part III of third schedule.	Application of Lands Clauses Acts to purchases by agreement. Contracts. Legal proceedings. Penalty for destruction of notices &c. Attendance of inspectors at meetings.

2ND SCH.
—cont.

THIRD SCHEDULE.

1. Article.	2. Substituted provisions.
VII	- Art. VII. The provisions of sections 59 63 and 76 of the Local Government Act 1933 shall apply to the joint board as if the joint board were a local authority other than a parish council.
XV	- Art. XV. For the purposes of this order the joint board shall exercise and perform and be subject to all the powers duties and liabilities of a local authority under the enactments mentioned in the second schedule to this order and those enactments shall with the necessary modifications extend to the joint board as if they were herein re-enacted and in terms made applicable to this order and to the joint board and to the united district.

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